

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No.1595 of 2008

Hasen Banoo being dead her heirs
Shaha Noor and others
----- Plaintiff-Appellant-Petitioners
=Versus=
Md. Ali Akbar and others
----- Defendant-Respondent-Opposite
Parties

Mr. Abul Kalam Mainuddin, with
Mr. A.S. Md. Ramzan Khan, Advocates
----- For the Petitioners
Mr. Shasti Sarker, with
Ms. Lili Rani Saha, Advocates
----- For the Opposite Parties

**Heard on 08.05.2017, 09.05.2017 and
Judgment on 22.05.2017**

At the instance of the plaintiff-appellant-petitioners, Shaha Noor and others, this Rule has been issued calling upon the opposite party No.1 to show cause as to why the impugned judgment and decree dated 31.01.2008 passed by the learned Additional District Judge, 8th Court, Dhaka in Title Appeal No.215 of 2007 dismissing the appeal and confirming the judgment and decree dated 20.05.2007 passed by the learned Assistant Judge, Dhaka in Title Suit No. 76 of 2006 should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present petitioners as the plaintiffs filed the Title Suit No.76 of 2006 in the court of learned 4th Additional Assistant Judge, Dhaka for declaration of title to the land mentioned in the schedule “Ka” of the plaint and also for declaration that the documents described in schedule “Kha” of the plaint dated 13.06.1981 and 02.12.1996 respectively are illegal, inoperative and not binding upon the plaintiffs. The plaint also contains that the predecessor of the plaintiff-petitioner Abdul Hamid filed the Partition Suit No. 50 of 1959 which was decreed ex-parte finally on 17.02.1962 and after the Execution Case No.03 of 1998 he got saham of the land measuring 45 ajutangsha, thereafter, Rabunur transferred 35 ajutangsha to the plaintiffs by way of oral gift and delivered possession accordingly, the petitioners became the owners of the suit land for 80 ajutangsha. Abdur Rahman and Rabenur filed Title Suit No.77 of 1965 which was decreed on compromise and an appeal therefrom and a revisional application being Civil Revision No.364 of 1990 was discharged. The present defendant-opposite parties filed Title Suit No. 37 of 2001 in the court of learned Assistant Judge, Dhamrai, the present-petitioners came to know for the first time through the written objection filed in

the Decree Execution Case No.3 of 1998 about some illegal documents described in the schedule “Ka” of the plaint.

On the other hand, the present-defendant-opposite parties contested the suit by filing a written statement denying all statements of the plaint. It is further contended that the land described in the plaint originally belonged to three brothers namely, Rupchan, Amiruddin and Nannu Ostagar. In course of time they died leaving behind their legal heirs. Among them, Abdur Rahman and Rabenur, the children of Nannu Ostagar filed Partition Suit No.77 of 1965 of the property described in the schedule-“Ka”. The said Abdur Rahman and Rabenur obtained a compromise decree as to their respective sahams. Thereafter, Rabenur transferred her share of land measuring 544 ajutangsha to Parvin by the registered Heba Deed No.15698 dated 13.06.1981. Similarly other of the said suit also transferred their share of the land measuring 35 ajutangsha to the present defendants by the sale deed No.5325 dated 02.12.1996 and constructed a semi-pucca tin shed house thereon.

After hearing the parties the learned 4th Additional Assistant Judge, Dhaka dismissed the suit on 20.05.2007. Being aggrieved the present plaintiff-petitioners as the appellants preferred the Title Appeal No.215 of 2007 in the court of learned District Judge, Dhaka,

which was heard by the learned Additional District Judge, 8th Court, Dhaka on transfer, who by his judgment dated 31.01.2008 disallowed the appeal by affirming the judgment of the trial court. This revisional application has been filed challenging the legality of the said impugned judgment and passed by the learned appellate court below and the Rule was issued thereupon.

Mr. Abul Kalam Mainuddin, the learned Advocate appearing with the learned Advocate Mr. A.S. Md. Ramzan Khan and Ms. Anjuman Ara Khatoon for the petitioners submits that though in the suit the plaintiff-petitioners prayed for cancellation of the title deeds of the defendants (Safkabra Deed No. 5325 dated 23.12.1996 and Heba-Bil-Ewaj Deed No.15698 dated 13.06.1981) being forged and concocted, the defendants neither exhibited those original deeds nor proved their Execution. The defendants produced certified copies only. The acceptance of the Secondary evidence and the decision in the suit relying upon such non admissible Evidence are errors of law apparent on the face of the record as contemplated under Section 63(2) of the Law of Evidence and as such, the appellate court committed an error of law, resulting in an error in the decision occasioning failure of justice.

He also submits that the learned trial court while discussing the issue No.2 erroneously observed that the plaintiffs claimed the whole suit land by way of oral gift but the plaintiffs, in fact, claimed the suit land both by inheritance and oral gift. The learned trial court travelled beyond the plaintiffs' case and evidence on record, as such, committed an error of law resulting in an error in the decision, occasioning failure of justice.

The Rule has been opposed by the present opposite-party No.1.

Mr. Sashti Sarker, the learned Advocate appearing with Ms. Lili Rani Saha submits that the present-plaintiff-petitioners filed the suit for declaration of title and also for declaration that the deeds in question dated 13.06.1981 and 02.12.1996 respectively are illegal and not binding upon them but in the trial court they failed to prove their case even though they appeared their own case under the settled principle of law therefore, both the courts concurrently passed the judgment against the present-petitioners as they do not have any right title upon the suit land, as such, this Court should not interfere into the judgment passed by the learned appellate court below and the Rule should be discharged.

He also submits that the plaint of the suit does not contain any specified land upon which they sought for decree, therefore, the

settled principle of law in our jurisdiction is that a suit filed without any specified land the suit became not maintainable. The said Rabenur and others validly executed the transfer deed in favour of the present opposite parties by the deed dated 13.06.1981 and 02.12.1996 respectively and both the courts below found in favour of the present opposite parties therefore, this Rule is liable to be discharged.

Considering the above submissions made by the learned Advocates of both sides and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with Annexures therein, in particular, the impugned judgment passed by the appellate court and also considering the lower court records, it appears to me that the present-petitioners as the plaintiffs filed the title suit praying for title and declaration of two documents being Heba Deed dated 13.06.1981 executed by one Rabenur and also the sale deed dated 02.12.1996. The fact of the suit has been clearly mentioned in the impugned judgment passed by the learned trial court and similarly the said course of event has been clearly mentioned in the judgment of the courts below.

This Court has to take a decision as to the legality of the claim made by the present plaintiff-petitioners by filing the suit. Both the parties filed two common documents being Heba Deed dated

13.06.1991 and Exhibited as 2(Ka) and (Uma) and also the sale deed dated 02.12.1996 Exhibited as 2 (Chcha). After examining the above two documents, it appears that the present plaintiff-petitioners have failed to take necessary steps to dispute the said documents in favour of the present-opposite parties by Rabenur, daughter of Nannu Otagar. On the other hand, the present petitioners' claim as to the oral gift by Abdul Hamid or Rabenur regarding the suit land could not be proved by the present plaintiff-petitioners by producing any witness as to what and when also in presence of which witness therefore, the plaintiffs failed to prove their own case regarding the validity of the oral gift in their favour.

Under the provision of the Evidence Act a documentary evidence as to any fact or any issue carriage more evidential value than the oral evidence. In the instant case, the plaintiffs were under an obligation to produce sufficient document in favour of their own case which is absent from the side of the plaintiffs. Regarding the sale deed dated 02.12.1996 executed by Abdul Ali, Kohinoor and Abul Hamid could not be proved by the present plaintiffs as illegally executed in favour of the present defendant-opposite parties therefore, both the above mentioned documents transferred their entitlement upon the present-opposite parties.

Regarding position of the suit land, I have examined the Exhibits in the suit land and it transpires to me that the present plaintiff-petitioners paid no Khajna as to the land and the land was never mutated in their names. However, it appears that through court the present petitioners have been in possession from 05.03.2002. Moreover, if an entitlement is not proved by any valid and operative document, possession alone cannot establish any entitlement of immoveable property. Another aspect of this case is that the oral gift by Abdul Hamid to his sister Rabenur cannot be established because of the documentary evidence mentioned above.

Now I am inclined to consider the judgment and decree passed by the learned courts below. The learned trial court came to a lawful conclusion to dismiss the suit filed by the present plaintiff-petitioners on the basis of the following finding:

“ইতিপূর্বে আলোচনাএক্স সিদ্ধান্ত গ্রহণ করা হইয়াছে যে, যে সম্পত্তি সম্পর্কে বাদীগণ স্বত্বের ঘোষণা দাবী করিয়া এবং উক্ত সম্পত্তি তাহাদের নির্মল স্বত্ব প্রমাণ করিতে ব্যর্থ হইয়াছেন এবং যে দুইটি দলিল তথ্যকতাপূর্ণ এবং উহা বাদীদের উপর অকার্যকর মর্মে দাবী করিয়াছেন তাহাও বাদীপক্ষ প্রমাণে সক্ষম হন নাই। মোকাদ্দমায় ডিএলি পাইবার জন্য বাদীপক্ষকে তাহাদের দাবী সন্দ্বিহাতীত ভাবে প্রমাণ হওয়া আবশ্যিক কিন্তু উহা করিতে বাদীপক্ষ ব্যর্থ হওয়ায় বর্তমান আকারে ও প্রকারে সাক্ষী ও মোকাদ্দমায় বাদীপক্ষকে কোন প্রকার প্রতিকার পাইতে পারেন না।”

Similarly the learned appellate court below also came to a concurrent finding in favour of the present defendant-opposite parties on the basis of the following finding:

“উভয় পক্ষৰ স্বীকৃত মতে ৱাৰিনুৱাৰ .০০৩৫ অযুতাংশ জমি স্বত্ব বিদ্যমান ছিল। ৱাৰিনুৱাৰ তাৰ স্বত্বাংশ পালিত কন্যা বিবি ওৱফ্ৰ পাৰভীণ বৰাবৰ বিগত ১৩/৬/৮১ ইং তাৰিখ ১৫৬৫৮ নং হেবা দলিল মূলি হস্তান্তৰ কৰিন। উক্ত জমি সহ কোহিনুৱা ও ইভু তাৱিৰ স্বত্বাংশৰ মোট .০০৮০ অযুতাংশ ভূমি ২ নং বিবাদী আলী আকবৰ বৰাবৰ হস্তান্তৰ কৰিন। বিবাদী পক্ষ মৌক্ষিক ও দালিলিক সাক্ষ্য দ্বাৰা উহা প্রমান কৰিছিল।”

From the above two judgments concurrently findings that the plaintiffs failed to prove their own case. On the other hand, the defendant-opposite parties have adduced and produced sufficient documents which proved their case, as such, I am of the opinion that the learned courts below committed no error of law and there are proper consideration and proper reading of the evidence and the relevant laws. I am not inclined to interfere into the impugned judgment and decree passed by the learned appellate court.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The office is directed to communicate this judgment and order to the concerned court immediately and the office is also directed to send down the lower courts record at once.